

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

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RENAL ELLIS,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
MICHAEL LA VECCHIA (Shield no. 25586),
SERGEANT JAY SANTANA (Shield no. 4356),

Defendants.
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ECF CASE

**FIRST AMENDED
COMPLAINT**

06 CV 4827 (LTS) (RLE)

Jury Trial Demanded

PRELIMINARY STATEMENT

1. This is a civil rights action in which the plaintiff seeks relief for the violation of his rights secured by 42 U.S.C. § 1983 and the First, Fourth, Sixth, and Fourteenth Amendments to the United States Constitution. This case arises out of an August 19, 2005 incident in which two members of the New York City Police Department (“NYPD”), Police Officer Michael La Vecchia and Sergeant Jay Santana, subjected plaintiff to false arrest, retaliation, excessive force, fabricated evidence, and malicious prosecution. Plaintiff seeks compensatory and punitive damages, declaratory relief, an award of costs and attorneys’ fees, and such other and further relief as the court deems just and proper.

JURISDICTION & VENUE

2. This action is brought pursuant to 42 U.S.C. § 1983 and the First, Fourth, Sixth, and Fourteenth Amendments to the United States Constitution. Jurisdiction is conferred upon this Court by the aforesaid statutes and 28 U.S.C. §§ 1331 and 1343.

3. Venue is proper in the Southern District of New York pursuant to 28 U.S.C. § 1391(b) and (c) because defendant City of New York is subject to personal jurisdiction

in this District. Venue is also proper pursuant to 28 U.S.C. § 1391(b) because a substantial portion of the acts in question in this lawsuit took place in this District. Specifically, the City of New York's deliberate indifference to plaintiff's federally protected rights took place in this district at NYPD Headquarters located at One Police Plaza and at the office of the Civilian Complaint Review Board located at 40 Rector Street.

PARTIES

4. Plaintiff is a resident of the State of New York, County of Kings.

5. The City of New York is a municipal corporation organized under the laws of the State of New York.

6. Police Officer Michael La Vecchia is a member of the NYPD, 71st Precinct, who was on duty and acting under color of state law on August 19, 2005 at 3:22 p.m. La Vecchia is sued in his individual and official capacity.

7. Sergeant Jay Santana is a member of the NYPD, 71st Precinct, who was on duty and acting under color of state law on August 19, 2005 at 3:22 p.m. Santana is sued in his individual and official capacity.

STATEMENT OF FACTS

8. On August 19, 2005, plaintiff went to the 71st Police Precinct to inquire about two unidentified police officers who had come to plaintiff's home earlier that day.

9. Plaintiff waited in the precinct for several hours for help but no one assisted him.

10. At approximately 3:20 p.m., Police Officer Michael La Vecchia confronted plaintiff and asked him the reason why he was in the precinct.

11. Plaintiff, in a peaceful and appropriate manner, informed Officer La Vecchia that he was seeking information on the two unidentified police officers who had come to plaintiff's home earlier that day.

12. Officer La Vecchia told plaintiff that the NYPD had no information for him and threatened to arrest plaintiff if he did not leave the precinct immediately.

13. When plaintiff responded that he was simply seeking help and that he had not broken any law, Officer La Vecchia, after obtaining approval from Sergeant Jay Santana who was aware of all the relevant facts, arrested plaintiff without cause.

14. In the course of taking plaintiff into custody, Officer La Vecchia handcuffed plaintiff excessively tight causing plaintiff to suffer pain and bruises to his wrists. Plaintiff asked Officer La Vecchia to loosen the cuffs but La Vecchia refused. Sergeant Jay Santana observed this use of excessive force but failed to take remedial action.

15. Officers La Vecchia, acting in concert with Sergeant Santana, held plaintiff in custody for several hours.

16. At approximately 7:00 p.m., Officer La Vecchia, acting in concert with Sergeant Jay Santana, issued plaintiff two summonses charging plaintiff with trespass and disorderly conduct. Plaintiff was then released from custody.

17. Plaintiff was forced to retain an attorney and appear in court on several occasions to answer the bogus charges.

18. On February 16, 2006, the Summons Court, located on Broadway in New York County, dismissed the charges that Officer La Vecchia and Sergeant Santana filed against plaintiff.

19. Defendants' actions caused plaintiff to suffer physical injuries, emotional distress, fear, embarrassment, humiliation, pain, physical discomfort, and loss of liberty.

**FEDERAL CLAIMS AGAINST MICHAEL LA
VECCHIA AND JAY SANTANA**

20. Plaintiff repeats and realleges the allegations contained in ¶¶ 1-19 as if fully set forth herein.

21. The conduct of Michael La Vecchia and Jay Santana, as described herein, amounted to false arrest, retaliation, excessive force, fabricated evidence, and malicious prosecution. This conduct violated plaintiff's rights under 42 U.S.C. § 1983 and the First, Fourth, Sixth, and Fourteenth Amendments to the United States Constitution.

**FEDERAL CLAIMS AGAINST THE CITY OF
NEW YORK**

22. Plaintiff repeats and realleges the allegations contained in ¶¶ 1-21 as if fully set forth herein.

23. The City of New York directly caused the constitutional violations suffered by plaintiff.

24. Upon information and belief, the City of New York, at all relevant times herein, was aware from notices of claim, lawsuits, complaints filed with the City, and from the City's own observations, that the individual defendants are an unfit, ill-tempered officer who have the propensity to commit the acts alleged herein. Nevertheless, the City of New York exercised deliberate indifference by failing to take remedial action. The City failed to properly train, retrain, supervise, discipline, and monitor the officers and improperly retained and utilized them. Moreover, the City of New York failed to adequately investigate prior complaints against the officers.

25. The aforesaid conduct by the City of New York violated plaintiff's rights under 42 U.S.C. § 1983 and the First, Fourth, Sixth, and Fourteenth Amendments to the United States Constitution.

WHEREFORE, plaintiff demands a jury trial and the following relief jointly and severally against the defendants:

- a. Compensatory damages in an amount to be determined by a jury;
- b. Punitive damages in an amount to be determined by a jury;
- c. Costs, interest and attorney's fees;
- d. Such other and further relief as this Court may deem just and proper,

including injunctive and declaratory relief.

DATED: January 11, 2007
Brooklyn, New York

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By:

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